

Conflict of interest, delegation, and the handling of my personal information

Section 89, Public Sector Act 2022 · Code of Conduct clause 1.2

Cory Lea Shepherd

AO3, Switchboard Services, Logan Hospital, Metro South Health

Employee reference MSH-INJ-5795

To: The Chief Executive, Metro South Health

Cc: Human Resources, Logan and Beaudesert Health Service — LBH.HRTeam1@health.qld.gov.au

Injury Management — lbh_injurymanagement@health.qld.gov.au

Ms Emily Petering, Industrial Officer, Together Queensland

Date: [SEND DATE]

1. WHAT I AM ASKING, AND WHAT I AM NOT

I am asking that the decisions being made about my capacity, my attendance and my return to duty be made by an officer outside Corporate Services, and that the clinical material be held only by the Injury Management team.

I address this letter to you because section 89 of the Public Sector Act 2022 makes the chief executive the person to whom a conflict is disclosed, and the only person who may authorise an officer to continue to act in a matter affected by one. I do not raise it with you in order to escalate it. I raise it with you because, on the terms of the section, there is no one else who can answer the questions at Part 3.

I am not asking that anyone be removed from the management of my employment. I am not asking that anyone be stood aside, investigated, or found to have done anything wrong. I make no allegation against any individual and I seek no finding about anyone.

Clause 1.2 of the Code of Conduct for the Queensland Public Service records that having a conflict of interest is not of itself wrongdoing, and that what matters is whether it is disclosed and managed. I proceed on that basis, and I ask these questions in that spirit.

2. THE POSITION AS I UNDERSTAND IT

- (a) The letters of 31 July 2026 are written in the first person of the decision-maker — "I am seeking further clarification", "I require further information", "I will make a decision regarding your ability to perform your role" — and are signed by Mr Scott Hughes, Director, Corporate Services.
- (b) Question 3 of the attached request asks my general practitioner to advise whether I am fit to return "under the existing reporting arrangements, including working with and reporting to [my] current line manager". Those reporting arrangements sit within Corporate Services.
- (c) The Manager, Switchboard Services — who on 2 July 2026 advised that my return could not be facilitated, and asked me to wait for advice as to my next returning shift — reports within that same directorate.
- (d) On 4 October 2025 I made a formal written request for review to the A/Director, Human Resources Business Partnering, concerning a process initiated by the officer who has signed the letters of 31 July 2026. My union was copied. I do not reopen that matter and I make no submission about it. I record it only because it bears on whether a conflict exists and how it must be managed.
- (e) The letter of 7 July 2026 records that my treating practitioner had advised of "unresolved workplace matters involving line management", and that the Health Service did not have sufficient information to assess whether they presented psychosocial hazards.

The officer determining my return to duty is therefore the Director of the directorate in which the advice of 2 July 2026 was given, to whom the officer who gave it reports, and whose own directorate is the subject matter of the reporting-arrangements question at question 3.

I say only that this is a set of circumstances in which a conflict may exist. Whether it does, and how it has been managed, is not something I can determine.

3. THE QUESTIONS I ASK

Section 89(1) of the Public Sector Act 2022 provides that if a public sector employee has an interest that conflicts or may conflict with the discharge of the employee's duties, the employee:

"(a) must disclose the nature of the interest and conflict to the employee's chief executive as soon as practicable after the relevant facts come to the employee's knowledge; and (b) must not take action or further action concerning a matter that is, or may be, affected by the conflict unless authorised by the employee's chief executive."

I ask the Health Service to confirm:

- (a) whether any disclosure has been made under section 89(1)(a) in relation to the decisions concerning my attendance, my pay and my return to duty;
- (b) whether any authorisation has been given under section 89(1)(b) for an officer to take, or to continue to take, action concerning those matters;
- (c) who holds the delegation for those decisions, and the source and instrument of that delegation;
- (d) whether the advice of 2 July 2026 and the decision of 3 July 2026 were made with the knowledge or approval of the officer now determining my return to duty; and
- (e) whether any conflict has been identified and recorded, and if so, how it is being managed.

I ask these questions in writing because I have asked them before, in my email of 28 July 2026, and have not received an answer.

If no authorisation has been given under section 89(1)(b), I ask that you consider the direction contemplated by section 89(2), and that in the meantime the decisions described at Part 2 be allocated to an officer outside Corporate Services.

I am conscious that this is a request that you exercise a function under the Act, and not a request that anything be found about anyone. If the answer to each of (a) to (e) is that the matter has been dealt with, that answer will resolve it entirely and I will take it no further.

4. THE SEPARATION I PROPOSE

I propose the ordinary separation of functions. It requires no restructuring, removes no one from the management of my employment, and requires no finding to be made about anyone.

- (a) THE CLINICAL MATERIAL — held exclusively by the Injury Management team, Human Resources, on a medical-in-confidence basis. Corporate Services would not hold, and would not have access to, the clinical material. This is what the Employee Capabilities Checklist itself recommends at Additional Comments 4(c): "return-to-work coordination and correspondence through the Injury Management team, Human Resources."
- (b) THE DECISION — any decision concerning my capacity or my return to duty made by an officer outside Corporate Services.
- (c) IMPLEMENTATION — Corporate Services retains the operational role: rostering me, putting in place whatever adjustments are decided, and the ordinary day-to-day management of my work. My line manager would receive the adjustments to be implemented, not the clinical information behind them.

The officer steps out of the decision, not out of the workplace.

Metro South Health is a large organisation and I do not anticipate that this would present any difficulty.

5. MY PERSONAL INFORMATION

The information sought by the request of 31 July 2026 is sensitive health information about me.

- (a) I ask that it be held by the Injury Management team and used only for the purpose for which it was collected — the assessment of my capacity and any adjustments — and not for any other purpose.
- (b) I ask to be told who within the Health Service has had access to the medical material already held about me, and who it is proposed will have access to the further material when it is received.
- (c) I ask that access be limited to those who require it for the purpose, and that the clinical material not be provided to Corporate Services. What Corporate Services requires in order to roster me and implement adjustments is the adjustments themselves, not the diagnosis, the history or the clinical reasoning behind them.
- (d) I ask to be told whether it is proposed to provide the information to any person outside the Health Service, and if so, to whom and for what purpose.

(e) I do not consent to the material being used in connection with any other proceeding.

I make these requests under the Information Privacy Act 2009 and the Queensland Privacy Principles, and consistently with the consent I have given, which is scoped in my response of the same date.

6. WHY IT MATTERS TO THE DECISION ITSELF

I raise one further matter, neutrally.

A decision on my request for a change in the way I work may only be made, or refused, on reasonable grounds. Whether grounds are reasonable is not only a question of what was decided; it is also a question of who decided it and on what material. If the decision is made by an officer within the arrangements the decision concerns, that is a matter which can be raised later, by either of us, and I would rather it were dealt with now.

I would also note that the Managing the risk of psychosocial hazards at work Code of Practice 2022 identifies poor organisational justice — including a lack of procedural fairness — as a psychosocial hazard in its own right, and that HR Policy G03 requires proper consideration to be given to that Code.

I therefore ask that this be resolved before the decisions are made, rather than after.

7. WHAT THIS LETTER DOES NOT DO

- (a) It makes no allegation against any individual and asks for no finding about anyone.
- (b) It does not ask that anyone be removed from the workplace, stood aside or investigated.
- (c) It is separate from my response of the same date to the Request for Medical Information, from my request under clause 10.3.2, and from my notice of dispute under clause 1.11. A decision on any of those is not an answer to this.
- (d) It is not a complaint under any Act, and it is not a grievance.

I confirm again that I am engaging with this process and want to return to work.

Yours sincerely,

Cory Lea Shepherd

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